

TENTATIVE RULINGS

Judge Michael J. Strickroth

DEPT C15

**Department C15 hears Law and Motion matters on Mondays at
1:45 pm**

Court Reporters: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- **[Civil Court Reporter Pooling](#); and**
- **For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.**

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 10:00 am in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department C15 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") also available at <https://www.occourts.org/media-relations/aci.html> will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so by providing notice of in-person appearance to the court and all other parties five (5) days in advance of the hearing. (see Appearance Procedures, section 3(c)1.)

PUBLIC ACCESS: In those instances where proceedings will be conducted only by remote video and/or audio, access will be provided to interested parties by contacting the courtroom clerk, preferably 24 hours in advance. No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS

Date: September 25, 2023

#	Case Name	Tentative
1	Droste vs Khalil 2023-01301681	Motion to Strike Complaint Defendant Cheryl Lynn Walsh’s anti-SLAPP Motion to Strike Plaintiff’s Complaint is CONTINUED to November 20, 2023, at 1:45 p.m. in Department C15. Moving Defendant Cheryl Walsh failed to file a proof of service of the moving papers on all parties that have appeared in the action. The moving papers must be served on all parties who have appeared in the action, whether or not the motion seeks relief against such parties. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2023) ¶ 9:82.5; see also <i>Code Civ. Proc.</i> , § 1014 [“After appearance, a defendant or the defendant's attorney is entitled to notice of all subsequent proceedings of which notice is required to be given”].) Here, the proof of service for the Motion to Strike only establishes Defendant Cheryl Walsh served Plaintiff and Defendant Nadia K. Starner (pro per). Walsh failed to serve the Motion on Suhail Khalil (pro per) and Linda Gunderson (pro per), who had appeared by the time the Motion was filed. Moreover, on 8-2-23, the Court advanced the anti-SLAPP from 3-24-24 to 9-25-23. Plaintiff was ordered to give notice. On 8-7-23, Plaintiff gave notice of the ruling to all parties who had appeared in the action, but Plaintiff gave notice to numerous Defendants in pro per by electronic service.

		Consent for electronic service of a self-represented party is required under <i>California Rule of Court</i>, rule 2.251(c)(3). Thus, the service of the new hearing date is questionable. Additionally, Plaintiff objects that Defendant’s Motion was 20 pages, which is 5 pages over the maximum length for a memorandum of points and authorities. <i>California Rule of Court</i>, rule 3.1113(d) provides: “Length of memorandum ¶ Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages. In a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 20 pages. No reply or closing memorandum may exceed 10 pages. The page limit does not include the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service.” <i>California Rule of Court</i>, rule 3.1113(g) provides: “Effect of filing an oversized memorandum ¶ A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper.” “No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.” (California Rule of Court, rule 3.1300(d).) “A trial court has broad discretion under rule 3.1300(d) of the Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.” <i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765. Here, Defendant Walsh does not present any evidence showing an extended brief was authorized by the court. Plaintiff claims it is prejudiced by the excessive brief. Given that the
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		Complaint is 363 pages long and Defendant used 5 pages more to make arguments in support of its anti-SLAPP, the extra pages are understandable. While the Court admonishes Defendant for its violation of the California Rules of Court, the Court will allow Plaintiff to file an Amended Opposition not to exceed 20 pages in the interest of justice and fairness. Defendant may file an Amended Reply memorandum not exceed 10 pages. The deadlines for these amended filings are per Code. Based on the foregoing, the Court CONTINUES Defendant Cheryl Lynn Walsh's Motion to Strike Complaint to November 20, 2023, at 1:45 p.m. in Department C15. On the court's own motion, the status conference set for November 20, 2023, at 8:30 am is continued to November 20, 2023, at 1:45 pm in C15. Defendant Walsh to give notice.
2	Gregg vs Nelson 2021-01196389	Motion to Abate Action, or in the Alternative Dismiss Action Defendants The Regents of the University of California and Ariana Nelson, M.D.'s Motion to Abate is DENIED. The case is STAYED. The hearing on this motion was continued from 8-7-23. Plaintiff is believed to have passed away on or about 12-27-22. Plaintiff was an attorney and representing himself in this action. Defendants previously served the instant motion by e-service on Plaintiff's law firm's email address, knowing he was deceased. Accordingly, Defendants were ordered to re-serve

		the motion at Plaintiff's law firm address and his last known home address by certified mail. Defendant's counsel Steven Wysocky submitted his declaration regarding attempts to locate the successor in interest to Plaintiff Hugh Greg. (ROA 115). Those attempts included phone calls to numbers listed for Mr. Gregg, as well as property record searches, emails, and regular mailings. Mr. Gregg's listed address was sold after his death. Phone numbers have been disconnected. Mr. Wysocky has also attempted contact with the attorneys at Mr. Gregg's shared office space, but they could not provide any information relative to a successor in interest. Pursuant to <i>Code of Civil Procedure</i> § 377.21, a pending action or proceeding does not abate with the death of a party if the cause of action survives. Here, Defendants admit Plaintiff's cause of action survives the death of Plaintiff. However, Plaintiff's heirs must take certain procedural steps to continue with the action and they have failed to do so. A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest. <i>Code Civ. Proc.</i> § 377.30. "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." <i>Code Civ. Proc.</i> § 377.31. The procedures the decedent's successor in interest must take are set forth in <i>Code of Civil Procedure</i> § 377.31. Because Plaintiff's heirs have not yet applied to the Court to continue this action, the action is stayed to allow Plaintiff's heirs the time to either proceed with this action or dismiss it.
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		Moving party to give notice. Status Conference The court schedules this matter for a status conference on 6-24-2024, at 8:30 AM, in C15. Regents to give notice.
3	Hunter vs Ayres Self Storage, LTD. 2023-01326116	Demurrer to Complaint Defendants, Ayres Self Storage, LTD, Bruce Ayres, Ayres Self Storage Costa Mesa, LLC, Ayres Self Storage Montclair, LLC's (Defendants) Demurrers to the First Cause of Action for Violation of Business and Professions Code 21700 et seq and the Second Cause of Action for Violation of Business and Professions Code 17200 et seq to the Complaint are SUSTAINED in part and OVERRULED in part. Defendants' Notice states Defendants demur only to the first cause of action for violation of the California Self-Service Storage Act (Act) and second cause of action for violation of the Unfair Competition Law (Demurrer, 1:26-2:11), while the memorandum of points and authorities argues all four causes of action are insufficiently pled. The notice of motion must state in the first paragraph exactly what relief is sought and the grounds on which the relief is sought. <i>Code of Civil Procedure</i> § 1010; <i>California Rule of Court</i>, rule 3.1110(a); <i>People v. American Surplus Insurance Co.</i> (1999) 75 Cal.App.4th 719, 726. Generally, the court cannot grant different relief, or relief on different grounds, than stated in the notice of motion. <i>American Surplus Insurance, Id.</i> at 726; <i>Luri v. Greenwald</i> (2003)

		107 Cal.App.4th 1119, 1124; <i>Blumenthal v. Sup.Ct.</i> (1980) 103 Cal.App.3d 317, 320. Plaintiff's Opposition does not specifically respond to the Demurrer's arguments on the third and fourth causes of action. Further, Defendants' reply appears to only argue the first two causes of action are insufficiently pled. (see Reply,7:2-12.) Therefore, the Court will consider the merits of the Demurrer only as to the first two causes of action. 1. First Cause of Action: Violation of California Self-Service Storage Facility Act The first cause of action is for Violation of the California Self-Service Storage Facility Act <i>Business and Professions Code</i> § 21700. <i>Business and Professions Code</i> § 21703 provides: "If any part of the rent or other charges due from an occupant remain unpaid for 14 consecutive days, an owner may terminate the right of the occupant to the use of the storage space at a self-service storage facility by sending a notice to the occupant's last known address and to the alternative address specified in <u>subdivision (b) of Section 21712</u>...[¶] The notice shall contain all of the following:..[¶] (b) A statement that the occupant's right to use the storage space will terminate on a specified date (not less than 14 days after the mailing of the notice) unless all sums due are paid by the occupant before the specified date." <i>Vitug v. Alameda Point Storage, Inc.</i> (2010) 187 Cal.App.4th 407 (<i>Vitug</i>) states: "we hold that the Act does not itself prohibit the charging of rent and late fees after termination of a renter's access to his or her unit; the Act defers to the underlying rental agreement for determination of what charges are proper and may be included in the lien." <i>Id.</i> at 416-417. The <i>Vitug</i> court stated that
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		this was because: “in enacting the Act, and section 21713.5 in particular, the Legislature did not intend to regulate the circumstances under which rent and late fees could be charged. Instead, the Legislature intended to provide owners with liens, establish fair procedures to enforce the liens, and determine the <i>amount</i> of reasonable late fees. This is apparent from the fact that the Act addresses those matters directly and in detail but does not expressly address when rent and late fees may be charged.” <i>Id.</i> at 414 (italics original). The Opposition does not address <i>Vitug</i>. Here, the Complaint alleges all Defendants violated the California Self-Service Storage Facility Act (Act) because they engaged in a practice of locking Plaintiff and others out if rent was paid 6 days late, in violation of the 28-day safe harbor provision required by the Act, and because Defendants required Plaintiff and others to pay rent and late fees despite locking them out of their storage units. (Complaint, ¶¶ 32-37.) Specifically, Defendants are alleged to be in violation of <i>Business and Professions Code</i> § 21703 because they did not wait the required 28 days under this section to deny Plaintiff access to her rental unit for unpaid rent. (Complaint, ¶ 14.) However, the Complaint does not allege when Plaintiff was allegedly locked out from her storage unit, or the date(s) Defendants charged rent or late fees. The Complaint also makes all allegations in the first cause of action against all Defendants, even though some defendants are flesh and blood individuals and some are not. It is unclear which of the Defendants charged Plaintiff fees and/or locked Plaintiff out, and when this was done. The Reply argues the demurrer should be sustained given that Defendants cannot determine whether each is alleged to have violated the Act without such information. (Reply, 5:8-21.)
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	Additionally, “[a] private party can sue for violation of a statute only where the statute in question allows it.” <i>Mayron v. Google, LLC</i> (2020) 54 Cal.App.5th 566, 571. “We first examine the statutory text to see if it contains ‘clear, understandable, un mistakeable terms,’ ‘which strongly and directly’ indicate a private of action is allowed. [citation]” <i>Ibid.</i> “The statute may, for instance, refer to obtaining a remedy or enforcing its provisions ‘by way of an action.’ [citation]” <i>Ibid.</i> “Where the text does not contain an un mistakeable directive, the legislative history may indicate whether the Legislature intended to create a private cause of action.” <i>Ibid.</i> The Complaint pleads Defendants’ actions have violated <i>Business and Professions Code</i> sections 21703 and 21713.5, but these sections on their face do not evidence an intent to create a private cause of action. Instead, these sections provide guidelines to owners of self-storage facilities for the amount of late fees they may charge and the types of notices they may issue. Based on the above, the Court finds the first cause of action is insufficiently pled. To the extent the Act supports a cause of action in this instance, the Complaint does not allege any dates Defendants violated the Act by charging rent or fees. Additionally, <i>Vitug</i> suggests charging rent and late fees past the date of lockout is not a violation of the Act, as the parties must defer to the rental agreement. The plain language of the Act also does not demonstrate an intent to grant a private right of action for violation of the Act. Therefore, the demurrer to the first cause of action is SUSTAINED. 2. Second Cause of Action: Violation of the Unfair Competition Law The second cause of action is for violation of the Unfair Competition Law. <i>Business and Professions Code</i> section 17200 (“UCL”)
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	prohibits “unfair competition,” which is defined to include “any unlawful, unfair or fraudulent business act or practice” and “unfair, deceptive, untrue or misleading advertising” and any act prohibited by business and professions code section 17500. A cause of action under the UCL must be stated with “reasonable particularity.” <i>Gutierrez v. Carmax Auto Superstores California</i> (2018) 19 Cal.App.5th 1234, 1261. Defendants argue the second cause of action is insufficiently pled. (Demurrer, 9:15-23.) The Complaint alleges Defendants’ practice of locking out Plaintiff and others before the time specified under <i>Business and Professions Code</i> section 21703 had elapsed constitutes an unlawful business practice. (Complaint, ¶ 43.) Specifically, the Complaint alleges Defendants’ charging a “Pre-foreclosure fee” violates <i>Business and Professions Code</i> section 21713.5 (Complaint, ¶ 45) because the fees charged are above the statutory maximum. Plaintiff also alleges she suffered damages, including being required to pay rent and late charges. (Complaint, ¶ 44.) Liberally construing the allegations of the Complaint, the Court finds the second cause of action is sufficiently pled. Specifically, the Complaint alleges Defendants actions in charging rent and late fees are unlawful as a violation of <i>Business and Professions Code</i> section 21713.5 and this caused Plaintiff to incur monetary loss. These allegations are sufficient to state a claim for violation of the UCL. Based on the foregoing, the Demurrer to the second cause of action is OVERRULED. Plaintiff is granted 20 days leave to amend the First Cause of Action. Demurring Defendants are to give notice.
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		Motion to Strike Defendants, Ayres Self Storage, LTD, Bruce Ayres, Ayres Self Storage Costa Mesa, LLC, Ayres Self Storage Montclair, LLC’s (Defendants) Motion to Strike Portions of the Complaint is GRANTED in part and DENIED in part. It is unclear from the Notice of Motion what Defendants are specifically moving to strike. The Notice of Motion states Defendants are moving to strike “words and/or phrases” in the Complaint, including all of the following: “Standardized Policies,” “Pre-Foreclosure Fee,” “Premature Lockout Methods,” “Premature Lockout Class Members,” “Twenty-Eight Day Safe Harbor,” “Unlawful Lockout Policies,” “California’s Unfair Competition Law (UCL),” paragraphs 5, 6, 7, 8, 9, 13, 14, 17, 18, 21, 26, 27.A2, 29, 32, 33, 35, 36, 37, 39,” “Treble Damages of \$150,000,” “Reasonable Attorney Fees,” “Punitive Damages,” “All are class members,” “Unlawful Policy,” “Standardized Business Practice,” “Working Date,” “Safe Harbor,” “Public Policy Violations” and “Pre-Foreclosure Group.”(Notice of Motion, 2:1-21.) Based on the way the notice is phrased, notably the use of “and/or” before the above list of phrases, it is unclear if Defendants are limiting their request to an order striking just the above from the Complaint or something more. Defendants’ memorandum of points and authorities appears to argue the “class action allegations” should be stricken because the
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		Complaint does not satisfy the requirements for pleading a class action. (Motion, 5:9-6:14.) No legal argument is made as to the other requests which appear to be in the notice of motion, although the motion appears to argue the Complaint is insufficiently pled as a whole. (Demurrer, 5:1-8.) To the extent Defendants are arguing that portions of the Complaint should be stricken because it is insufficiently pled, <i>Pierson v. Sharp Memorial Hospital, Inc.</i> (1989) 216 Cal.App.3d 340, 342, explains, “Preliminarily, we note a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer. [Citation.]” Regarding the class action allegations, Plaintiff appears to concede this argument. The Opposition states: “PLAINTIFF does not oppose the striking of all clear and direct references to “CLASS ACTION” damage claims.” (Opposition, 2:2.) Because Plaintiff concedes on this point, the Court grants the motion to the extent it seeks to strike the Complaint’s class action allegations only. Moving party to give notice.
4	Li vs Alanisi 2021-01218134	Motion to Be Relieved as Counsel of Record for plaintiff Jun Li Moving attorney Helen W. Quan’s Motion to be Relieved as Counsel for Plaintiff Jun Li (Motion) is GRANTED. Moving attorney’s motion was previously continued from 6-26-23 because there was no proof of service filed with the motion and no proposed order filed either. Moving attorney’s

	motion was again continued from 7-17-23 because moving attorney still had not filed MC-053 as required. As of 7-17-23, moving attorney has filed the required proposed order on MC-053 (see ROA 260, 261). Therefore, the motion now complies with <i>California Rules of Court</i>, rule 3.1362, including <i>CRC</i> 3.1362(e). Based on the foregoing, the motion is granted. Moving attorney will remain counsel of record for Plaintiff Jun Li until attorney files proof of service of the signed order on Plaintiff Jun Li. Moving attorney is to give notice. Motion to Be Relieved as Counsel of Record for plaintiff Dongli Yang Moving attorney Helen W. Quan's Motion to be Relieved as Counsel for Plaintiff Dongli Yang (Motion) is GRANTED. Moving attorney's motion was previously continued from 6-26-23 because there was no proof of service filed with the motion and no proposed order filed either. Moving attorney's motion was again continued from 7-17-23 because moving attorney still had not filed MC-053 as required. As of 7-17-23, moving attorney has filed the required proposed order on MC-053 (see ROA 260, 261). Therefore, the motion now complies with <i>California Rules of Court</i>, rule 3.1362, including <i>CRC</i> 3.1362(e). Based on the foregoing, the motion is granted. Moving attorney will remain counsel of record for Plaintiff Dongli Yang until attorney files proof of
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		service of the court's signed order on Plaintiff Dongli Yang. Moving attorney to give notice.
5	Sunwest Bank vs Madison Realty Equities, LLC 2019-01114433	Claim of Right to Possession Hearing Pursuant to the stipulation of the interested parties, signed by the court on 9/20/2023, the motion is off calendar.
6	Petersen vs American Building & Remodeling, Inc. 2019-01077652	Claim of Exemption – Levy Judgment Debtor Jonathan Wolf's Claim of Exemption in his 2019 Land Rover Range Rover VIN # SALWR2REIKA830714, License Plate 9EOU421 is DENIED. The exemption claimant has the burden of proof at the hearing on the claim of exemption. <i>Code of Civil Procedure</i>, § 703.580(b).) However, the “exemption statutes should be construed, so far as practicable, to the benefit of the judgment debtor.” <i>Schwartzman v. Wilshinsky</i> (1996) 50 Cal.App.4th 619, 630; <i>McMullen v. Haycock</i> (2007) 147 Cal.App.4th 753, 758. Here, Judgment Debtor moves pursuant to <i>Code of Civil Procedure</i> section 703.140. “The exemptions set forth in section 703.140 are available only in cases brought under Title 11 of the United States Code, and are thus often called ‘bankruptcy-only’ exemptions.” <i>In re Garcia</i>, 451 B.R. 909, 913 (C.D.

		Cal. 2011); <i>In re Regevig</i>, 389 B.R. 736 (C.D. Cal. 2008). Judgment Debtor has not submitted any evidence to show he has filed for bankruptcy protections pursuant to Title 11 of the United States Code. Therefore, the Claim of Exemption is DENIED. Judgment creditor to give notice.
7	Santa Ana Police Officers Association vs City of Santa Ana 2022-01298807	Motion to Compel Deposition The court is aware that petitioner has previously attempted to file a NOTICE OF SETTLEMENT of the entire case on 8/28/23 and 9/19/23—both being rejected. As it appears the matter may be resolving, on the court’s own motion Respondent’s motion set for 9/25/23 is continued to 10/23/2023 at 1:45 PM in C 15. Clerk to give notice.
8	Platinum Properties Investor Network, Inc. vs Fuller 2018-00974280	Motion to Compel Satisfaction of Judgment Plaintiff Platinum Properties Investor Network, Inc.’s (INC) Motion to Compel Satisfaction of Judgment is DENIED. Platinum’s Request for Judicial Notice is GRANTED. Platinum’s Objections to Testimony and Evidence filed by ROI Property Group Management, LLC and ROI Property Group 2, LLC is SUSTAINED as to Objection Nos. 7 and 13, and OVERRULED as to Objection Nos. 1, 2, 3, 4, 5, 6, 8, 9, 10, 11 and 12.

		Platinum failed to comply with California Rules of Court, Rule 3.1110(f)(4), which provides: “Electronic exhibits must meet the requirements in rule 2.256(b). Unless they are submitted by a self-represented party, electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” The Court expects the parties to follow this rule in future filings. On 12-7-21, the Second Amended Judgment was entered in the amount of \$233,458.54 + interest accrued from 10-26-20 (ROA 596.) On 12-22-21, The Court clerk issued a writ of execution for \$233,498.53 from America First Credit Union (“AFCU”). Instead of levying the funds from Platinum Properties Investor Network, Inc. (INC), AFCU levied the funds from Platinum Properties Investor Network, LLC (“LLC”). ROI returned the levied funds to AFCU who has since interpleaded them with the Court. The levied funds are now the subject of an ongoing Interpleader Action - <i>American First Credit Union v. ROI Property Group Management, LLC</i>, pending in this Court, Case No. 30-2022-01255653-CU-MC-CJC. <i>Code of Civil Procedure</i> § 724.010(b) provides as follows: “Where a money judgment is satisfied by levy, the obligation of the judgment creditor to give or file an acknowledgment of satisfaction arises only when the judgment creditor has received the full amount required to satisfy the judgment from the levying officer.”
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	“The court clerk shall enter satisfaction of a money judgment in the register of actions when the following occur: (a) A writ is returned satisfied for the full amount of a lump-sum judgment. (b) An acknowledgment of satisfaction of judgment is filed with the court. (c) The court orders entry of satisfaction of judgment.” <i>Code Civ. Proc.</i> § 724.020. INC files this motion claiming the judgment was satisfied when the levying officer garnished \$233,498.54 pursuant to a writ of execution prepared by Defendants ROI Property Group Management, LLC and ROI Property Group 2, LLC (“ROI”). INC asserts ROI “returned the funds to the garnishee” and exercised dominion, control and ownership over the funds when it “returned the funds to the bank on the condition it file an interpleader action.” (Motion at p. 7:13-27.) INC argues nothing in the <i>Code of Civil Procedure</i> allows a creditor to undo its obligations by returning money it received. What ROI decided to do with the levied money after it received it makes no difference to its statutory duties. “Whether ROI gambled the money away in Las Vegas or gave the money away does not matter. What matters is the fact that ROI received funds that fully satisfied its judgment and was statutorily required to file a satisfaction of judgment.” (Motion at p. 8 fn. 2.) These arguments are not credible. This is not the case of ROI using the money for some self-serving purpose or giving it away for some unknown reason. Curiously absent from INC’s motion is any real mention that the levied funds were erroneously taken from the wrong bank account – Platinum Properties Investor Network, LLC (“LLC”), not INC’s - nor the fact that such funds are now the subject of the
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		Interpleader Action (<i>American First Credit Union v. ROI Property Group Management, LLC</i>, pending in this Court, Case No. 30-2022-01255653-CU-MC-CJC). ROI was legally compelled to return the levied funds as those funds were improperly taken from the LLC. Despite this material fact, INC urges this Court to compel ROI to file a satisfaction of judgment even though INC claims the funds paid towards that judgment do not belong to ROI and were wrongfully levied. This argument defies common sense. Money mistakenly taken from the wrong entity does not satisfy the debt obligations of the original debtor. Further, INC appears to argue that because ROI held onto the funds for a period of time and “exercised dominion, control, and ownership over the funds” this somehow amounts to a satisfaction of the judgment. (See Motion p. 7:22-8:2.) Platinum offers no legal authority to support this assertion. Although it cites to <i>Gray1 CPB, LLC v. SCC Acquisitions, Inc.</i> (2015) 233 Cal.App.4th 882, 893, as controlling in this case, <i>Gray I</i> easily distinguishable. In <i>Gray I</i>, the court held that tender of a cashier’s check and creditor’s acceptance of the check, constituted satisfaction of the judgment. Accordingly, the judgment creditor’s motion for post judgment attorney fees was untimely because it should have been filed before the judgment was fully satisfied. But unlike the present situation, there was no dispute in <i>Gray I</i> over the source of the funds. The proper debtor paid the judgment creditor. Whereas here, the levied funds were taken from the wrong bank account and did not belong to the debtor. As previously affirmed by Judge McCormick, “Defendants do not possess the funds and judgment remain unsatisfied.” (ROA 649).
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		Based on the foregoing, the Court finds the judgment has not been satisfied and the motion is DENIED. ROI to give notice.
9	Pinner Construction Company vs Pinner 2023-01324438	Defendants John Pinner and Marilyn Pinner Motion for Anti-SLAPP Defendants John and Marilyn Pinner's (Pinner's) special motion to strike the complaint of Plaintiff Pinner Construction Company (PCC) under <i>Code of Civil Procedure</i> section 425.16 is GRANTED. Defendants' request for judicial notice of the complaint in OCSC Case No. 2022-01288013 is granted. Plaintiff's objections to the declaration of Defendant Thomas H. Edwards (Edwards) are overruled in their entirety. <i>Equilon Enterprises v. Consumer Cause, Inc.</i> (2002) 29 Cal.4th 53, 67, holds: "[W]e may summarize a court's task in ruling on an anti-SLAPP motion to strike as follows. Section 425.16, subdivision (b)(1) requires the court to engage in a two-step process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant's burden is to demonstrate that the act or acts of which the plaintiff complains were taken 'in furtherance of the [defendant]'s right of petition or free speech under the United States or California Constitution in connection

	with a public issue,’ as defined in the statute. (§ 425.16, subd. (b)(1).) If the court finds such a showing has been made, it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. Under section 425.16, subdivision (b)(2), the trial court in making these determinations considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” Defendants move to strike PCC’s causes of action in the complaint for (1) intentional interference with prospective economic relations, and (2) negligent interference with prospective economic relations. First Prong – Protected Activity “The sole inquiry under the first prong of the anti-SLAPP statute is whether the plaintiff’s claims arise from protected speech or petitioning activity. [Citation.] Our focus is on the principal thrust or gravamen of the causes of action, <i>i.e.</i>, the allegedly wrongful and injury-producing conduct that provides the foundation for the claims.” <i>Castleman v. Sagaser</i> (2013) 216 Cal.App.4th 481, 490–491. The basis for PCC’s complaint is a letter from Defendant Edwards, writing as counsel on behalf of the Pinner, addressed to the Chief of Facilities of Los Angeles Unified School District (LAUSD). The January 13, 2023, letter (LAUSD Letter) states the following: “I represent John and Marilyn Pinner, who were the owners of Pinner Construction Company, Inc. (“PCC”) for many years prior to December 28, 2016. On that date they sold their interest in the company to Mr. Dirk Griffin. Following the purchase of the company by Mr. Griffin, PCC has continued to bid on projects with the Los Angeles
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		Unified School District and is currently performing several major projects for the District. [¶] I am writing to you because a dispute has arisen between the Pinnars and Mr. Griffin that may result in a change of ownership at PCC. If you are not already aware of this dispute, I am enclosing a copy of the complaint filed by the Pinnars against Mr. Griffin in Case No. 30-2022-01288013-CU-BC-CJC now pending in Orange County Superior Court. The Pinnars are alleging that Mr. Griffin has failed to pay the balance of approximately \$4,480,000 still owed to them in connection with his purchase of the company, and they are seeking rescission of the contract of sale based on his failure to do so. If the Pinnars prevail in the lawsuit, they will resume ownership of the company. [¶] The purpose of this letter is to assure the District that any change of ownership resulting from the lawsuit will be handled in a way that does not affect PCC’s operations or the performance of any ongoing contracts between PCC and the District. If the District has any concerns about the lawsuit, we would be happy to address them.” (Edwards Decl., Exhibit 2.) Defendant Edwards declares the following: “I sent the Letter to Mr. Hovatter in furtherance of the claim for rescission that the Pinnars were asserting against Griffin in the Pinner-Griffin Lawsuit. I was concerned that LAUSD may treat a change in PCC’s ownership as an event of default under PCC’s ongoing contracts with LAUSD or remove PCC from its list of prequalified bidders on future LAUSD projects if the Pinnars prevail on their claim for rescission. The Pinnars wanted to find out how LAUSD would respond to a change in ownership and attempt to address any concerns that LAUSD might have about such a change before proceeding further with their lawsuit. This question was somewhat urgent because I was beginning to prepare a motion for
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	summary judgment on the Pinners’ claim for rescission that would have been set for hearing at the earliest possible date.” (Edwards Decl., ¶ 18.) ...“If LAUSD already knew about the Pinner-Griffin Lawsuit, I believed that the Pinners needed to provide it with assurance that the change in PCC’s ownership that would occur if prevailed in the lawsuit would not affect PCC’s performance of its existing contracts with PCC. On the other hand, if LAUSD did not already know about the lawsuit, I believed that it was better to disclose it now and provide LAUSD with such assurance than to wait and have LAUSD assume (correctly) that Griffin and PCC had been concealing the existence of the lawsuit when it later discovered the lawsuit.” (Id. at ¶ 20.) Defendants further argue: “Aside from providing the assurances to the District that are stated in the Letter, the Pinners wanted to find out whether the District would have such concerns because they have pleaded alternative claims for relief in their lawsuit against Griffin and will have to make an election of remedies before the lawsuit is completed. If they prove that he has failed to pay the remaining amounts owed to them for the purchase of the company, they can elect to proceed with their claim for rescission and take back the stock in the company that Griffin purchased from them. On the other hand, if the information they have obtained by the time this election has to be made indicates that that the value of the stock would be diminished because a change in ownership would adversely affect PCC’s ongoing relationships with customers like the District, the Pinners can elect to seek damages instead of rescission.” (Reply, 6:23-7:7.) Defendants contend the LAUSD Letter IS protected under <i>Code of Civil Procedure</i> section 425.16(e)(2), which defines protected conduct to include, “any written or oral statement or writing
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		made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” Specifically, Defendants contend the LAUSD letter was a written statement made in connection with the judicial proceeding in Orange County Superior Court Case No. 30-2022-01288013-CU-BC-CJC (Underlying Case), in which Defendants were litigating their claims regarding ownership of PCC against Mr. Griffin. Plaintiff contends the LAUSD Letter was NOT protected because a protected communication regarding a judicial proceeding must be (1) aimed at achieving the objects of the litigation; (2) relate to the substantive issues in the litigation; and (3) be directed to persons having some interest in the litigation. Citing a federal district court decision, Plaintiff argues that having “some interest” in the litigation means to be “a party to the litigation, a potential witness in the litigation, or an unwitting participant in the alleged misconduct.” (Opposition at 7:13-20, citing <i>Hanover Insurance Co. v. Fremont Bank</i> (N.D. Cal. 2014) 68 F.Supp.3d 1085.) Both parties rely on <i>Neville v. Chudacoff</i> (2008) 160 Cal.App.4th 1255 (<i>Neville</i>). In <i>Neville</i>, the employer Maxsecurity fired an employee (Neville) accused of misappropriating customer information to start a competing business. <i>Id.</i> at 1259. Before Maxsecurity commenced litigation against the employee, its attorney (Chudacoff) sent a letter to customers accusing Neville of breach of contract and misappropriation of trade secrets, suggesting the customers should not do business with Neville to avoid involvement in impending litigation. <i>Ibid.</i> Neville sued Chudacoff for defamation based on the customer letter. <i>Ibid.</i> The appellate court in <i>Neville</i> summarized prior cases on this point: “These cases stand for the proposition that a statement is ‘in connection with’ litigation under section 425.16, subdivision (e)(2)
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		if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation. <i>Id.</i> at 1266. The court then applied the rule as follows: “The Letter related directly to Maxsecurity's claims for breach of contract and misappropriation of trade secrets against Neville. Neville was alleged to have misappropriated Maxsecurity's customer lists. The Letter was directed to Maxsecurity's current and former customers—persons whom Maxsecurity reasonably could believe had an interest in the dispute as potential witnesses to, or unwitting participants in, Neville's alleged misconduct. The Letter constituted an attempt to prevent further misuse of Maxsecurity's proprietary information, and thereby mitigate Maxsecurity's potential damage. Unlike <i>Paul</i> and <i>Proton</i>, the Letter contained no statements of fact concerning Neville that were not based on or related to the allegations that formed the basis of Maxsecurity's claims. Thus, the Letter was ‘in connection with’ the issues in Maxsecurity's lawsuit against Neville.” <i>Id.</i> at 1267. <i>Neville</i> does not hold that a communication <i>must</i> be directed to a potential witness or unwitting participant in order to be protected under section 425.16(e)(2). These categories of recipient were cited as examples rather than an exclusive list of the type of recipient who may have “some interest” in the litigation. The anti-SLAPP statute “is to be construed broadly” to protect the valid exercise of constitutional rights. <i>Crossroads Investors, L.P. v. Federal National Mortgage Assn.</i> (2017) 13 Cal.App.5th 757, 775. Plaintiff has not shown its narrow construction of subdivision (e)(2) is supported by California law. Defendants have shown that as an entity which regularly did business with PCC, LAUSD had “some interest” in the Underlying Case. LAUSD
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		could be affected by the results of the Underlying Case, including a change in ownership of PCC which was one form of relief sought by Defendants. The LAUSD Letter was also aimed at achieving the objects of the litigation, which included regaining control of PCC or alternatively a damages award. Defendants sought to ensure that if they prevailed and regained control of PCC, PCC's business with a major client would not be harmed. They sought to determine whether LAUSD would view a change in ownership unfavorably in which case Defendants could elect to pursue their damages claim rather than rescission of the sale contract. The dual purpose of the LAUSD Letter directly relates to Defendants' litigation goals. Finally, the LAUSD Letter directly related to the substantive issues in the Underlying Case. It described the Underlying Case, stated the potential outcome sought by Defendants, and sought to engage with LAUSD regarding the potential effects of the litigation. Therefore, Defendants have shown the LAUSD Letter was protected conduct under subdivision (e)(2) of the anti-SLAPP statute. Second Prong – Probability of Prevailing “To show a probability of prevailing, the opposing party must demonstrate the claim is legally sufficient and supported by a sufficient prima facie showing of evidence to sustain a favorable judgment if the evidence it has submitted is credited.” <i>Mitchell v. Twin Galaxies, LLC</i> (2021) 70 Cal.App.5th 207, 217. “In deciding the question of potential merit, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant; though the court does not weigh the
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		credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim. We accept as true the evidence favorable to the plaintiff. A plaintiff must establish only that the challenged claims have minimal merit to defeat an anti-SLAPP motion.” <i>Id.</i> at 217–218. Defendants argue PCC cannot prevail because its claim is barred by the litigation privilege of <i>Civil Code</i> section 47(b). In response, PCC has <u>not</u> submitted evidence in support of its claims. Rather, PCC argues the litigation privilege does not apply because the LAUSD letter was not transmitted to a person with a substantial interest or connection with the Underlying Case. Although PCC has not produced evidence to support its prima facie case, Defendants’ arguments on the second prong in the motion were limited to application of the litigation privilege. Therefore, the Court will address the application of the privilege. While section 425.16(e)(2) and section 47(b) are not coextensive, they serve similar policy interests and are to be construed broadly. <i>Neville, supra</i>, at 1263. “The principal purpose of the privilege is to afford the utmost freedom of access to the courts without fear of being subsequently harassed by derivative tort actions.” <i>Rothman v. Jackson</i> (1996) 49 Cal.App.4th 1134, 1146. “The usual formulation of the litigation privilege is that it applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action. The principal purpose of the litigation privilege “is to afford litigants and witnesses the utmost freedom of access to the courts without
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		fear of being harassed subsequently by derivative tort actions. The litigation privilege “promotes the effectiveness of judicial proceedings by encouraging ‘open channels of communication and the presentation of evidence’ in judicial proceedings. However, republications to nonparticipants in the action are generally not privileged under the litigation privilege, and are thus actionable unless privileged on some other basis.” <i>GetFugu, Inc. v. Patton Boggs LLP</i> (2013) 220 Cal.App.4th 141, 152. However, case law has “expanded the scope of [the litigation privilege to include publication to nonparties with a substantial interest in the proceeding.” <i>Ibid.</i> While the privilege protects communications to persons with a substantial interest in the litigation; it generally does not encompass statements about litigation to the press or general public. <i>Argentieri v. Zuckerberg</i> (2017) 8 Cal.App.5th 768, 783-784. The parties have not cited case law addressing whether a nonparty with a business relationship to a litigating party, such as LAUSD in this matter, may have a “substantial interest” in the litigation sufficient to support application of the privilege. However, application of the litigation privilege in this case furthers the policies underlying section 47(b). As discussed above, Defendants sent the LAUSD letter to protect their interests which were being litigated in the Underlying Case and to gather information which might assist them in determining which remedies to pursue. As an entity that regularly contracted with PCC, LAUSD had an interest in the ongoing litigation involving control of PCC which was substantially greater than the general public’s interest in the litigation. A change in ownership of PCC could have a substantial effect on the business relationship between PCC and LAUSD, and could affect PCC’s performance of contracted work for LAUSD. Therefore, the Court finds LAUSD had a
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	substantial interest in the litigation for purposes of the second prong. Next, “[f]or the litigation privilege to apply, there must be a sufficient nexus between the statement and the litigation. Specifically, the statement must achieve the objects of the litigation, which requires that it be connected with, or have some logical relation to the action.” <i>Argentieri, Id.</i> at 785. Here, as discussed under the first prong above, the LAUSD Letter had a sufficient nexus with the Underlying Case because it was intended to further Defendants’ goals in the litigation and potentially guide their litigation strategy. Therefore, the motion to strike is granted as to Plaintiff’s complaint as to the Pinners. Moving parties to give notice. Defendant Thomas H. Edwards Motion for Anti-SLAPP Defendant Thomas H. Edwards’ special motion to strike the complaint under Code of Civil Procedure section 425.16 is GRANTED. Defendant Edwards raises substantially the same arguments as the Pinners, and his motion is opposed by Plaintiff on the same grounds. Defendant Edwards prepared the LAUSD Letter on behalf of his clients, the Pinners. “An attorney has standing to bring a special motion to strike a cause of action arising from petitioning activity undertaken on behalf of the attorney’s client.” <i>Neville v. Chudacoff</i> (2008) 160 Cal.App.4th 1255, 1262. Therefore, Defendant Edwards’ motion is granted for the reasons set out above as
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		to the Pinners' motion as though incorporated herein. Moving party to give notice.
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